

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 12-09

CENTURY METAL RECYCLING PVT. LTD

COMPLAINANT

v.

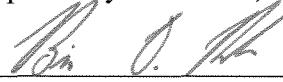
**DACON LOGISTICS, LLC dba CODA FORWARDING, GREAT AMERICAN
ALLIANCE INSURANCE COMPANY, AVALON RISK MANAGEMENT, HAPAG
LLOYD AMERICA, INC. AND MITSUI OSK LINES**

RESPONDENTS

**COMPLAINANT'S REQUEST FOR DISMISSAL AS TO HAPAG-LLOYD AMERICA,
INC. BY ORDER OF THE PRESIDING OFFICER**

Complainant Century Metal Recycling, Pvt. Ltd ("Century Metal"), by and through its attorneys, Halloran & Sage, LLP, hereby request that the presiding officer, Clay G. Guthridge, issue an order dismissing Hapag-Lloyd America, Inc. from this action, pursuant to 46 CFR 502.72(2)(a). Hapag-Lloyd Aktiengesellschaft and Century Metal have reached a resolution whereby the containers at issue will be released. Therefore, Century Metal wishes to dismiss its claim only as to Hapag-Lloyd America, Inc. voluntarily and urge the Administrative Law Judge to order such dismissal.

Respectfully submitted,



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Counsel for Complainant Century Metal Recycling Pvt. Ltd

Dated in Hartford, CT this seventh of December, 2012.

Certificate of Service

I hereby certify that I have on this seventh day of December, 2012, served a copy of the foregoing Request for Dismissal as to Hapag-Lloyd America, Inc. upon the following via first class mail:

Hapag-Lloyd America, Inc
c/o Wayne R. Rhode
Cozen O'Connor
Suite 1100
1627 I Street, N.W.
Washington, D.C. 20006

Dacon Logistics, LLC
31 Mountain Boulevard
Warren, New Jersey 07059

Mitsui OSK Lines
c/o Kevin J. Hartmann
Hae Woen Grace Bae
MOL (America) Inc.
160 Fieldcrest Avenue
Edison, NJ 07020

Mitsui OSK Lines
c/o Marc J. Fink
Cozen O'Connor
Suite 1100
1627 I Street, N.W.
Washington, D.C. 20006

Great American Alliance Insurance Company and
Avalon Risk Management
c/o Theodore H. Adkinson
Andrew D. Kehagiaras
Roberts and Kehagiaras LLP
One World Trade Center,
Suite 2350
Long Beach, CA 90831



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